

WORKERS' COMPENSATION

A. Purpose

1. The purpose of the Virginia Workers' Compensation Act is to provide compensation to employees for the loss of their opportunity to engage in work when their disability is caused by a condition/injury arising out of and in the course of employment. The general provisions of this Act are contained in the Virginia Workers' Compensation Act—Title 65.2 of the Code of Virginia.

2. Loudoun County Public Schools (LCPS) provides Workers' Compensation coverage to all employees (full-time, part-time, temporary, and substitute) through a self-insured program administered by a third-party administrator. That third-party administrator is authorized to investigate all claims, process medical bills for payment, accept or deny claims, and submit reports to the Virginia Workers' Compensation Commission (“the Commission”). The third-party administrator’s decisions are governed by application of the Workers’ Compensation Act and the case law interpreting that Act. All inquiries pertaining to Workers' Compensation benefits should be directed to the Human Resources and Talent Development Department (HRTD’s) Leave & Disability Programs office.

B. Notice of Injury

1. All employees shall report all work-related injuries to their immediate supervisor on the date of the occurrence of an accident or as soon thereafter as practical. For the protection of both the employee and LCPS, all employees who suffer a work-related incident are required to report that incident immediately, whether or not an immediate injury is apparent. Employees must ensure that an electronic First Report of Injury form (located on the third-party administrator’s website) is completed by the person designated to complete the form and that it is submitted to HRTD’s Leave & Disability Programs office or designee.

2. In the event the employee’s immediate supervisor is not available, reports of injuries considered emergencies may be made directly to the HRTD’s Leave & Disability Programs office. A designated staff member of the worksite will complete the electronic reporting form as soon as possible.

3. Employees must provide sufficient information to allow the immediate supervisor to complete the First Report of Injury form. Employees are further required to provide any additional information pertaining to their claim when requested.

4. In the event all necessary information pertaining to the injury is not available within two (2) days of the incident, the employee’s supervisor shall inform HRTD’s Leave & Disability Programs office of the delay and forward the First Report of Injury form to HRTD’s Leave & Disability Programs office as soon as practical after being advised of the injury.

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5. No compensation or medical benefit shall be payable unless written notice is provided within thirty (30) days after the occurrence of the injury pursuant to Va. Code § 65.2-600 of the Code of Virginia, unless reasonable excuse is made to the satisfaction of the Commission for not giving such notice and the Commission is satisfied that the employer has not been prejudiced thereby. In any event, the right to compensation under this plan shall be forever barred unless a claim therefore be filed with the Commission within two (2) years after the accident.

C. Medical Attention

1. Medical attention, if necessary, shall be provided to the injured employee from one (1) of the authorized physicians or medical facilities provided on the Employers' Panel of Physicians (the Panel).
 - a. If employees seek medical treatment from a provider not on the Panel in a non-emergency situation, those employees may be financially responsible for such treatment.
 - b. Employees shall be financially responsible for any treatment not specifically authorized by a Panel physician. All referrals for treatment or diagnostic services must be approved by the third-party administrator or HRTD's Leave & Disability Programs office.
 - c. An employee's unjustified refusal to accept medical service or vocational rehabilitation training, when provided by the employer, shall bar them from further compensation, as stated in Va. Code § 65.2-603, Duty to Furnish Medical Attention, Etc., and Vocational Rehabilitation; Effect of Refusal of Employee to Accept.
2. Employees may seek medical treatment from a hospital emergency room or walk-in clinic when an injury considered an emergency occurs, or if the injury occurs after regular office hours of the authorized Panel physician/medical facility. If follow-up medical treatment is required, it must be administered by a physician selected from the authorized Panel. The third-party administrator or HRTD's Leave & Disability Programs office are the only entities that may approve any referral to alternate healthcare providers for treatment or diagnostic services.
3. When seeking medical attention for work-related injuries, employees shall inform the Panel physician/medical facility the injury is work-related and that their employer is LCPS. Employees should additionally provide their assigned Workers' Compensation claim number to the selected Panel physician/medical facility.

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4. Employees requiring prescriptions or repair/replacement of dentures, artificial limbs, or other prosthetic or orthotic devices, as a result of their work-related injury, may receive reimbursement for their out-of-pocket expense, as set forth in Va. Code § 65.2-603. Questions regarding prescription reimbursement procedures may be addressed to the third-party administrator or to HRTD's Leave & Disability Programs office.

5. Requests for payment of treatment that are determined not compensable under workers' compensation may be submitted through the employee's own health insurance plan.

6. An employee must submit a doctor's status report on their injury to their immediate supervisor after their first visit to the Panel physician, a copy of which should be forwarded to the third-party administrator and HRTD's Leave & Disability Programs office. An employee must submit doctor's notes to the third-party administrators and HRTD's Leave & Disability Programs office after every subsequent visit to the Panel physician or other authorized treating physician until the employee is able to return to work or has reached the one (1) year absence limitation. A copy of the return to work release should be provided to the supervisor upon returning to the worksite.

7. When a Panel physician or other authorized treating physician deems an employee able to return to work, the employee must submit a doctor's status report, indicating release to duty with or without limitations, to HRTD's Leave & Disability Programs office and the third-party administrator. Upon reporting to work, the immediate supervisor should also be provided a copy. Accommodations may be reviewed by the ADA Coordinator prior to the employee's approval to return to work.

D. Salary/Wage Benefits

1. Workers' Compensation wage benefits are provided at the rate of two-thirds (2/3) of the average weekly, pre-tax wage of the employee, subject to weekly maximums, as approved by the Commission. This amount is not subject to payroll taxes.

2. No compensation shall be allowed for the first seven (7) calendar days of incapacity resulting from an injury per Va. Code § 65.2-509, Commencement of Compensation. This period will be charged to the employee's accrued sick leave, annual or personal leave, or recorded as Leave Without Pay. If the period of disability continues for more than twenty-one (21) calendar days, any leave used by the employee shall be reinstated, and leave records will be adjusted accordingly (*i.e.*, 2/3 of a day posted as workers' compensation and 1/3 of the day charged to accrued leave or Leave Without Pay).

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3. Employees who were in a paid leave status for the first seven (7) calendar days of disability will have those wages adjusted to reflect the Workers' Compensation salary benefits they received. Employees who have been in a Leave Without Pay status will be compensated for their first seven (7) calendar days of disability, in accordance with the Workers' Compensation salary benefit they will retroactively receive, after the twenty-first (21st) calendar day of disability. Employees are not entitled to their full LCPS salary and Workers' Compensation payment for the same hours or days. Employees who do not wish to utilize earned leave may do so by submitting a written request to HRTD's Leave & Disability Programs office.

4. An employee will continue to receive benefits until:

- a. The employee is released by the authorized Panel or treating physician for regular duty.
- b. The employee is released by the authorized Panel or treating physician and accepts an approved light-duty position.
- c. The employee refuses to report to a light-duty or regular-duty position.
- d. The employee refuses to accept authorized medical treatment per Va. Code § 65.2-603, Duty to Furnish Medical Attention, Etc., and Vocational Rehabilitation; Effect of Refusal of Employee to Accept.
- e. Workers' compensation limits expire, as set forth in Va. Code § 65.2-503.
- f. The employee returns to work after settling their workers' compensation claim for indemnity benefits. Such an employee is not entitled to additional payment for lost time under workers' compensation for that same subject incident. Any additional time lost from work will be deducted from the employee's own accumulated leave.
- g. All monies paid directly to the employee by the third-party administrator will be deducted from the employee's LCPS paycheck, as reported by the third-party administrator to LCPS. Employees may be subject to Leave Without Pay as a result of these adjustments.

5. Employees on workers' compensation disability leave are otherwise financially responsible for their elected voluntary payroll deductions, such as medical insurance premiums, credit union deductions, etc.

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- a. Employees may continue voluntary payroll deductions if they are using sick leave to ensure full salary continuation.
- b. Employees who are not receiving an LCPS paycheck may make direct payments for medical insurance and other voluntary benefit premiums to LCPS's Business & Financial Services Office. Other deductions are the employee's responsibility.

6. During the period of work-related disability, an employee may not be eligible to receive benefits under the short-term disability benefits program in order to receive full salary benefits. Employees covered under the Virginia Retirement System (VRS) Hybrid program may be eligible to receive short-term disability benefits, as approved by VRS or its designee. The employee is responsible for contacting VRS's Hybrid short-term disability third-party administrator.

E. Use of Accrued Leave

1. Employees on workers' compensation disability leave continue to earn applicable leave while in a protected-leave status.
2. Employees may utilize all earned leave on a prorated basis in order to continue receiving full salary. Employees who do not wish to utilize earned leave may do so by submitting a written request, along with their completed LCPS Workers' Compensation Checklist, to HRTD's Leave & Disability Programs office.
3. After utilizing all earned leave in order to receive full salary benefits, employees continuing to experience a work-related disability and whose work-related disability is confirmed by an authorized Panel or treating physician will continue to receive Workers' Compensation salary benefits equal to two-thirds (2/3) of their average weekly wage, subject to weekly maximums as ordered by the Commission.

F. One-Year Limitation. Employees who have not returned to work within one (1) calendar year after a compensable work-related injury, and who have exhausted all job and benefit protections under the Family and Medical Leave Act (FMLA) and any applicable School Board policy, may request to be: (1) placed on Restoration of Health Leave Without Pay status, under the provisions of School Board Policy 7722; or (2) separated. Employees may apply for disability retirement if they meet the eligibility requirements established by VRS.

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G. Light-Duty Program

1. LCPS recognizes the need for a light-duty program for those employees temporarily unable to perform their regularly assigned duties due to a work-related illness or injury. Light-duty positions may be available for those employees qualified to receive Workers' Compensation benefits and unable to perform their regularly assigned duties due to a work-related illness or injury. Employees refusing to accept approved light-duty assignments will be ineligible for Workers' Compensation benefits, and they may ultimately be separated from their LCPS employment.

2. This program is designed to return an injured employee to a productive level of employment while in a temporary light-duty assignment status and reduce LCPS's financial loss due to Workers' Compensation claims.

3. Any temporarily disabled employee qualifying for Workers' Compensation benefits and approved to return to work by an authorized Panel or treating physician may be eligible for assignment to a light-duty position. Light-duty assignments will be reviewed by HRTD's Leave & Disability Programs office and the respective employee's department head or building administrator. Light-duty assignments are subject to the following conditions:

- a. The authorized Panel or treating physician will determine the light-duty restrictions.
- b. A light-duty position is either available within the department where the employee is regularly assigned or in another department, in situations where there are no available light-duty positions in the department where the employee is regularly assigned.
- c. Compensation for the light-duty assignment shall be at the commensurate rate for the light-duty position the employee is performing. Workers' Compensation wage benefits will be provided at the rate of two-thirds (2/3) the difference between the light-duty rate and the rate of the employee's regular position, up to the maximum two-thirds (2/3) under workers' compensation wage benefits.

4. The light-duty program shall be administered by HRTD Leave & Disability Programs office, in close consultation with department heads/building administrators and treating physicians.

5. Light-duty assignments shall terminate:

- a. When an employee refuses to accept the light-duty assignment.

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- b. When the employee's authorized Panel or treating physician releases the employee to their full-duty position.
- c. At the expiration of the one (1) year time limitation from the date of injury.
- d. If other conditions warrant the elimination of the light-duty position.

H. Appeals/Litigation

1. As described more fully in Va. Code § 65.2-307, employees' rights under the Workers' Compensation Act shall exclude all other rights and remedies of such employees, their personal representatives or relatives, including the right to bring suit for any damages suffered as a result of the injury or accidental death.

2. Should employees disagree with the manner in which their claims are handled, these employees may petition the Commission for a hearing.

3. LCPS reserves the right of subrogation, which means LCPS succeeds to the employee's right to damages the injured employee, or the employee's representative, or other person may have recovered against any other party for such injury or death. The employee or the employee's estate agrees to reimburse LCPS for all compensation paid and expenses incurred by LCPS due to the employee's injury or accidental death, in the event that the employee or his personal representative obtains a settlement or judgment in any action against anyone other than the employer, as provided by Va. Code § 65.2-310. LCPS will enforce these rights of subrogation and reimbursement in its own name, or in the name of the injured employee or the employee's personal representative, in accordance with Va. Code §§ 65.2-309, 65.2-310, and 65.2-311.

[Former Regulation 7-48 REG]

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Legal Refs: Code of Virginia, 1950, as amended §§ [65.2-307](#), [65.2-309](#), [65.2-310](#), [65.2-311](#), [65.2-500](#) et seq., [65.2-603](#)